

22STCV38589 22STCV38589

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 22STCV38589 Hearing Date: July 16, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

22STCV38589

NEXGEN

AIR CONDITIONING AND HEATING, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY, vs

ZAKI S. MANSOUR

July

16, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF/CROSS-DEFENDANT NEXGEN AIR CONDITIONING AND HEATING, LLC'S MOTION TO COMPEL DISCOVERY RESPONSES AND FOR SANCTIONS AGAINST ZAKI S. MANSOUR.

RULING:

The Court grants the unopposed Motion.

The Court will complete, sign and file the Form Order received-stamped on June 17, 2026.

Plaintiff to give notice.

I.

BACKGROUND

By the Motion filed June 17, 2026, Plaintiff/Cross-Defendant moves to compel Defendant/Cross-Complainant Zaki S. Mansour to serve initial responses to form and special interrogatories, and to require him to pay \$3,840.00 in sanctions.

On March 2, 2026, the Court filed the Order granting the Motion to be Relieved as Counsel of Record for Zaki S. Mansour.

II.

LEGAL STANDARD

A motion to compel initial discovery responses need only show that discovery was properly served on the opposing party, the time to respond expired, and no response was served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906; Code Civ. Proc., § 2030.290 [compelling initial interrogatory responses].) A motion to compel initial discovery responses need not show good cause, meeting and conferring, or timely filing, and need not be accompanied by a separate statement. (Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants (2007) 148 Cal.App.4th 390, 404.)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) "If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a

monetary sanction to show that it acted with 'substantial justification.'" (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.)

III.

ANALYSIS

There is no opposition
filed as to this matter to show substantial justification for failing to serve
discovery responses.

IV.

CONCLUSION

Therefore, the Court
grants the Motion, as prayed.